

Opinion of the Court

None of this, of course, is to suggest that the facts of this case typify normal political interaction between public officials and their constituents. Far from it. But the Government's legal interpretation is not confined to cases involving extravagant gifts or large sums of money, and we cannot construe a criminal statute on the assumption that the Government will "use it responsibly." *United States v. Stevens*, 559 U.S. 460, 480 (2010). The Court in *Sun-Diamond* declined to rely on "the Government's discretion" to protect against overzealous prosecutions under §201, concluding instead that "a statute in this field that can linguistically be interpreted to be either a meat axe or a scalpel should reasonably be taken to be the latter." 526 U.S., at 408, 412.

A related concern is that, under the Government's interpretation, the term "official act" is not defined "with sufficient definiteness that ordinary people can understand what conduct is prohibited," or "in a manner that does not encourage arbitrary and discriminatory enforcement." *Skilling*, 561 U.S., at 402–403 (internal quotation marks omitted). Under the "'standardless sweep'" of the Government's reading, *Kolender v. Lawson*, 461 U.S. 352, 358 (1983), public officials could be subject to prosecution, without fair notice, for the most prosaic interactions. "Invoking so shapeless a provision to condemn someone to prison" for up to 15 years raises the serious concern that the provision "does not comport with the Constitution's guarantee of due process." *Johnson v. United States*, 576 U.S. 591, 602 (2015). Our more constrained interpretation of §201(a)(3) avoids this "vagueness shoal." *Skilling*, 561 U.S., at 368.

The Government's position also raises significant federalism concerns. A State defines itself as a sovereign through "the structure of its government, and the character of those who exercise government authority." *Gregory v. Ashcroft*, 501 U.S. 452, 460 (1991). That includes the prerogative to regulate the permissible scope of interactions between state officials and their constituents. Here, where a more limited